

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
GALVESTON DIVISION

Donald Lynn Thompson Jr.,	§	
Plaintiff,	§	
	§	
v.	§	CIVIL ACTION NO. 3:25-cv-00253
	§	
Matagorda County, et al.,	§	
Defendants.	§	

PLAINTIFF'S NOTICE OF SUPPLEMENTAL AUTHORITY AND
REQUEST FOR JUDICIAL NOTICE IN OPPOSITION TO
DEFENDANTS' MOTION TO DISMISS

TO THE HONORABLE JUDGE OF SAID COURT:

COMES NOW Plaintiff Donald Lynn Thompson, Jr., appearing pro se, and files this Notice of Supplemental Authority and Request for Judicial Notice pursuant to Federal Rule of Evidence 201.

I. REASON FOR THIS FILING: ADDRESSING THE "PLAUSIBILITY" CHALLENGE

This filing is necessary to address a specific factual challenge raised by Defendants in their Motion to Dismiss (Doc. 29) regarding the plausibility of Plaintiff's claims against Matagorda County.

Defendants' Argument (Doc. 29, p. 12): Defendants argued that Plaintiff failed to allege a "pattern or practice" sufficient to establish Monell liability. They claimed Plaintiff's allegations regarding a custom of misconduct were "conclusory" and asserted that Plaintiff failed to identify "prior incidents" or a "pattern of abuses."

Plaintiff's Response (Doc. 33, p. 23): Plaintiff argued that he need not prove a pattern of subordinate misconduct because the constitutional violations were committed and ratified by the County's Final Policymakers (the Justice of the Peace and the Sheriff are County Final Policymaker officials).

While preparing for Discovery to substantiate these claims, Plaintiff has recently located public records confirming that the specific County officials responsible for the records in this case have been criminally charged with Tampering with Governmental Records.

Plaintiff requests the Court take Judicial Notice of these records now because they are dispositive to the pending Rule 12(b)(6) inquiry. They demonstrate that Plaintiff's allegations are in fact not "conclusory" speculation, but are supported by the documented criminal history of the County's own leadership of high ranking policy makers.

II. FACTS TO BE NOTICED

Plaintiff requests the Court take Judicial Notice which can be brought any time according to Federal Rule of Evidence 201 of the following public records from the Counties own public records authority:

A. Sheriff Frank "Skipper" Osborne (Final Policymaker for Law Enforcement)

- Case: The State of Texas v. Frank Dale Osborne, Case No. 20-130-283, 130th District Court.
- Charge: Attempt to Commit Tamper with Governmental Record (Texas Penal Code § 37.10).
- Disposition: On June 25, 2021, Sheriff Osborne entered a plea of GUILTY. (See Exhibit A).

Relevance: Although Sheriff Osborne is not individually named as a Defendant, he is the elected Sheriff and the Final Policymaker for Defendant Matagorda County Sheriff Department which is directly in effect the county itself, regarding law enforcement and jail records. Under Monell, his acts represent the official policy of the County. The fact that the County's chief law enforcement officer pled guilty to tampering with government records directly refutes Defendants' argument that Plaintiff's claim of a "custom or practice" is implausible.

B. Judge Jason Sanders (Named Defendant / Final Policymaker)

- Case: The State of Texas v. Jason Sanders, Case No. 2019-0108, Matagorda County Court.
- Charge: Tamper with Governmental Record (Texas Penal Code § 37.10).
- Disposition: On November 18, 2019, Judge Sanders entered a plea of NOLO CONTENDERE (No Contest). (See Exhibit B).

Relevance: Plaintiff alleges Judge Sanders who in fact is the same judge who entered a fraudulent "Time Served" judgment in this case. Defendants argue this is a "judicial act" entitled to immunity. However, Judge Sanders' prior plea regarding record tampering demonstrates a pattern of conduct outside the scope of lawful judicial function. It supports Plaintiff's contention that the judgment in this case was a falsified record created in the clear absence of jurisdiction.

III. ARGUMENT

Defendants asked this Court to dismiss this case because Plaintiff supposedly lacks "evidence" of a conspiracy or pattern. While Plaintiff is not required to produce evidence at the pleading stage, the Court is entitled to take Judicial Notice at any time according to Federal Rule of Evidence 201 of public records that render the Plaintiff's claims not just conclusionary but actually plausible.

These records confirm that the Executive Branch (Sheriff) and the Judicial Branch (JP) of Matagorda County have both engaged in the criminal falsification of government records. This is not a theory; it is a matter of public record.

Accordingly, Defendants' argument that Plaintiff has failed to allege a plausible Monell claim or conspiracy must fail. The "pattern" Defendants claim is missing is established by their very own criminal dockets.

IV. PRAYER

Plaintiff respectfully requests that the Court take into consideration the Federal Rule of Evidence 201 and accept this Judicial Notice of the attached criminal records of Sheriff Frank Osborne and Judge Jason Sanders when ruling on the current Motion to Dismiss submitted by the defense Dkt 29 and as a supplement to the Plaintiffs Dkt 33 Opposition to Defendants' Motion to Dismiss

Respectfully submitted,

/s/ *Donald Lynn Thompson Jr.*

Donald Lynn Thompson Jr.

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Dated: March 4, 2026

CERTIFICATE OF SERVICE

I hereby certify that on March 4, 2026 a true and correct copy of the foregoing Plaintiff's

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is available for the counsel for Defendants, Matagorda County et al., via the Pacer electronic filing access portal, in accordance with the Federal Rules of Civil Procedure. For the following named attorneys:

Ben Stephens and Kate David With

HUSCH BLACKWELL LLP
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Attorneys for Matagorda County Defendants

Respectfully

/s/ *Donald Lynn Thompson Jr.*

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